GMAC Insurance ONLINE
Real Insurance. Real Time. Really.

GMAC Insurance Online

GMAC Insurance Online would like to thank you for purchasing your auto insurance using our Online Service.

On the following pages you will find the documents that provide details of your policy and coverage.

We appreciate your business,

GMAC Insurance Online

If you have any questions or concerns regarding your correspondence please call our Customer Service at 1-800-GMAC-123.

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GMAC INSURANCE ONLINE, INC
PO Box 66924
St. Louis, MO 63166-6924

PERSONAL AUTO POLICY

Declarations

EFFECTIVE 10/2/2002 at 12:01 AM
SUPERCEDES ANY PREVIOUS DECLARATION BEARING THE SAME NUMBER FOR THIS POLICY, IF ANY.

POLICY DETAILS

COVERAGE IS PROVIDED BY GMAC INSURANCE ONLINE, INC.

POLICY NUMBER: AMO5078182
EFFECTIVE DATE: 10/2/2002 at 12:01 AM
EXPIRATION DATE: 4/2/2003 at 12:01 AM

POLICY ISSUED TO:
Jingxian Wu
601 S. Providence Rd, Apt. 705 L
Columbia MO, 65203

VEHICLES COVERED

VEH #	ST	TER	YR	MAKE - DESCRIPTION	VIN	SYM
1	MO	3	1994	Chrysler Concorde	2C3EL56F7RH140534	521817

INSURANCE IS PROVIDED WHERE A PREMIUM IS SHOWN FOR THE COVERAGE

COVERAGE	LIMITS OF LIABILITY	PREMIUM
Bodily Injury Liability	$25,000 per person / $50,000 per accident	50
UMBI	$25,000 per person / $50,000 per accident	8
UIMBI	$50,000 per person / $100,000 per accident	4
Property Damage Liability	$25,000 per accident	58
	Electronic Processing Discount	25
		$95

DISCOUNTS

DESCRIPTION
Full Payment Discount
Anti-Theft Discount
Electronic Documents Discount

APPLICABLE FORMS

FORM #	DESCRIPTION	EDITION DATE	
MO7000300	Policy Form	0300	
MO1000400	New Declaration/Renewal Offer	0400	
MO4070400	MO Automobile ID Cards	0400	
MO4100500	Underinsured Motorist Coverage	0500	
GE4100199	Notice of Underwriting Decision	0199	
GE4510401	Replacement Costs	0401	
NOTPV0301	Notification of Privacy Policy	0301	

DRIVERS

DRVR #	NAME	LICENSE NUMBER	STATE	BIRTH DATE	POINTS	
1	Jingxian Wu	500179385	MO	11/25/1975		
2	Yu Ning	L211250032	MO	9/30/1975		

ONLINE
GMAC Insurance Real Insurance. Real Time. Really.

Missouri Automobile Insurance Identification Card

Company
GMAC Insurance Company Online Inc.

Policy Number	Effective Date	Expiration Date
AMO5078182	10/2/2002	4/2/2003

Named Insured
Jingxian Wu

Named Insured's Address
601 S. Providence Rd, Apt. 705 L
Columbia MO, 65203

Vehicle Insured

Year	Make/Model		VIN
1994	Chrysler	Concorde	2C3EL56F7RH140534

THIS CARD MUST BE CARRIED IN THE INSURED MOTOR VEHICLE FOR PRODUCTION UPON DEMAND

"The coverage provided by this policy meets the minimum liability limits prescribed by law."

KEEP THIS CARD IN YOUR MOTOR VEHICLE OR ON YOUR PERSON

IN CASE OF AN ACCIDENT:

1. Report to police, cooperate with the investigation, but do not assume responsibility for any damages or injuries caused in the accident.
2. Get names and addresses of all parties damaged or injured, all witnesses and name of investigating officer.
3. Obtain license number of any other cars involved or at the scene.
4. Where required by law report to the properly designated state authority.
5. Call our office to report accident at 1-800-GMAC-123.

NAMED INSURED'S SIGNATURE

ONLINE
GMAC Insurance Real Insurance. Real Time. Really.

Missouri Automobile Insurance Identification Card

Company
GMAC Insurance Company Online Inc.

Policy Number	Effective Date	Expiration Date
AMO5078182	10/2/2002	4/2/2003

Named Insured
Jingxian Wu

Named Insured's Address
601 S. Providence Rd, Apt. 705 L
Columbia MO, 65203

Vehicle Insured

Year	Make/Model		VIN
1994	Chrysler	Concorde	2C3EL56F7RH140534

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"The coverage provided by this policy meets the minimum liability limits prescribed by law."

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IN CASE OF AN ACCIDENT:

1. Report to police, cooperate with the investigation, but do not assume responsibility for any damages or injuries caused in the accident.
2. Get names and addresses of all parties damaged or injured, all witnesses and name of investigating officer.
3. Obtain license number of any other cars involved or at the scene.
4. Where required by law report to the properly designated state authority.
5. Call our office to report accident at 1-800-GMAC-123.

NAMED INSURED'S SIGNATURE

IMPORTANT

Owner must show an insurance ID Card at the time of registration and is required to sign a statement at the time of registration that he still maintains insurance.

Card or form must be kept in vehicle at all times and be shown to a peace officer, police officer, commercial vehicle enforcement officer or commercial vehicle inspector upon demand.

In case of claim please call 1-800-GMAC-123.
Thank you, we certainly appreciate your business!

MISSOURI
PERSONAL AUTO POLICY



GMAC INSURANCE ONLINE, INC.

One GMAC Insurance Plaza
Earth City, MO 63045

This policy is a legal contract between you and us. The Personal Auto Policy has been:

designed for easy reference;
simplified to make it more understandable; and
arranged to better display the available coverage.

This policy is a legal contract between you and us. These policy provisions along with the Declarations Page, application and endorsements, if any, issued to form a part thereof, complete this policy.

READ YOUR POLICY CAREFULLY

To Report A Claim
1-800-GMAC-123

AUTOMOBILE POLICY **PERSONAL AUTOMOBILE POLICY**

Please read your contract carefully. Provisions of this contract and its endorsments (if any) restrict coverage. Be certain you understand all of the coverage terms, the exclusions, and your rights and duties.

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PERSONAL AUTOMOBILE POLICY

AGREEMENT

This policy is issued and renewed in reliance upon the truth and accuracy of the representations made in the application for this insurance. The terms of this policy impose obligations on all persons defined as "**you**." The responsibilities, acts and/or omissions, in connection with this insurance, of any person defined as "**you**" shall be binding upon all other persons defined as "**you**."

In return for payment of the premium and subject to all the terms of this policy, **we** agree with **you** as follows:

DEFINITIONS

Throughout this policy, "**You**" and "**Your**" refer to:

1. The "named insured" shown in the Declarations; and
2. The spouse if a resident of the same household.

"**We**," "**us**" and "**our**" refer to the Company providing this insurance as referred to in the declarations page.

For purposes of this policy, a private passenger type **auto** shall be deemed to be owned by a person if leased:

1. Under a written agreement to that person; and
2. For a continuous period of at least 6 months.

The following words or phrases, when printed in bold-faced type or in quotation marks, are defined as follows:

"Accident" means: a sudden, unexpected, and unintended occurrence.

"**Actual Cash Value**" means: the fair market value of the stolen or damaged property at the time of **loss**.

"Auto" means: a motor vehicle having more than three load-bearing wheels and which is of a kind required to be registered under the laws of relating to motor vehicles designed primarily for operation upon the public streets, roads and highways and driven by power other than muscular power.

"Bodily injury" means: bodily harm, sickness or disease, including death that results therefrom. **Bodily Injury** does not include harm, sickness, disease or death arising out of a medically defined communicable disease contracted by any person nor the exposure of such a disease by any person to any other person.

"Business" means: trade, profession or occupation.

"Depreciation" means: decline of value due to wear and tear or obsolescence.

"Diminution in value" means the actual or perceived reduction, if any, in the fair market value of tangible property an **auto** by reason of the fact that it has been damaged and repaired.

"Family member" means: a person related to **you** by blood, marriage or adoption who is a resident of **your** household. This includes a ward or foster child, or stepchild.

"Loss" means: sudden, direct, and accidental destruction or damage. **"Loss"** does not include **diminution in value**.

"Non-owned auto" means: any **auto** that is not owned by or furnished or available for the regular use of **you**, or any **family member** while in the custody of or being operated by **you** or any **family member** and while being used within the scope of the owner's express or implied permission. However, **non-owned auto** does not include any vehicle used as a temporary substitute for an **auto you** own which is out of normal use because of its breakdown, repair, servicing, **loss** or destruction.

"Occupying" means: in; upon; getting into, out of, on or off.

"Property damage" means: physical injury to, destruction of, or **loss** of use of tangible property.

"Trailer" means: a non-powered vehicle with no independent means of locomotion, including a farm wagon or farm implement, designed to be pulled by a:

1. Private passenger **auto** or station wagon; or
2. Pickup truck or private passenger van.

"Your covered auto" means:

1. Any **auto** shown in the Declarations.
2. Any of the following types of vehicles on the date **you** become the owner, but only if **you** have asked **us** to insure it as set forth below:
   a) a private passenger **auto** or station wagon; or
   b) a pickup truck or private passenger van that:
      (1) is not used for the delivery or transportation of goods and materials unless such use is:
         a) incidental to **your business** of installing, maintaining or repairing furnishings or equipment; or
         b) for farming or ranching; and
      (2) has a Gross Vehicle Weight as specified by the manufacturer of less than 10,000 pounds.

If the **auto you** acquire replaces an **auto** shown in the Declarations, it will have the same coverage as the **auto** it replaced, if **you**:

a) acquire the **auto** during the policy period; and
b) ask **us** to insure it within 30 days after **you** become the owner.

If **you** do not notify **us** within the time limit noted in b), no coverage exists for the replacement **auto**.

If the **auto you** acquire is in addition to any shown in the Declarations, it will have the broadest coverage **we** now provide for any **auto** shown in the Declarations, if **you**:

a) acquire the **auto** during the policy period;
b) ask **us** to insure it within 30 days after **you** become the owner; and
c) **we** insure all **autos you** own.

If **you** do not notify **us** within the time limit noted in b), no coverage exists for the newly acquired **auto**.

3. Any **trailer you** own, while being pulled by **your covered auto**.
4. Any **auto** or **trailer** not owned by **you** while used on a temporary basis as a substitute for any other **auto** described in this definition which is out of normal use because of its:
   a) breakdown;
   b) repair;
   c) servicing;
   d) **loss**; or
   e) destruction.

The definition of **your covered auto** does not apply to PART D - COVERAGE FOR DAMAGE TO YOUR AUTO. **Your covered auto** is redefined in PART D.

PART A - LIABILITY COVERAGE

INSURING AGREEMENT

If **you** pay a premium for this coverage, **we** will pay damages, except punitive or exemplary damages, for **bodily injury** or **property damage** for which any **insured** becomes legally responsible because of an **auto accident**. Damages include prejudgment interest awarded against the **insured** subject to **our** limit of liability for this coverage. **We** will settle or defend, as **we** consider appropriate, any claim or suit asking for these damages. In addition to **our** limit of liability, **we** will pay all defense costs **we** incur. **Our** duty to settle or defend ends when **we** offer to pay and pay **our** limit of liability for this coverage. **We** have no duty to defend any suit, settle any claim or pay any judgment for **bodily injury** or **property damage** not covered under this policy.

"Insured" as used in Part A means:

1. **You** or any **family member** for the ownership, maintenance or use of any **auto** or **trailer,** with the owner's permission.
2. Any person using **your covered auto** within the scope of the named owner's permission.
3. For **your covered auto,** any person or organization other than 1. and 2. above, but only with respect to legal responsibility for acts or omissions of a person for whom coverage is afforded under this Part.
4. For any **auto** or **trailer**, other than **your covered auto**, any person or organization other than 1. and 2. above, but only with respect to legal responsibility for acts or omissions of **you** or any **family member** for whom coverage is afforded under this Part. This provision applies only if the person or organization does not own or hire the **auto** or **trailer**.

SUPPLEMENTARY PAYMENTS

In addition to **our** limit of liability, **we** will pay on behalf of an **insured:**

1. Up to $300 for the cost of bail bonds required because of traffic law violations resulting from an **auto accident.** The **auto accident** must result in **bodily injury** or **property damage** covered under this policy.
2. Premiums on appeal bonds and bonds to release attachments in any suit **we** defend and **we** choose to appeal.
3. For damages covered under this policy, interest accruing after a judgment is entered in any suit **we** defend. **Our** duty to pay interest ends when **we** offer to pay that part of the judgment which does not exceed **our** limit of liability for this coverage.
4. Other reasonable expenses incurred at **our** request.
5. Reasonable **loss** of wages, up to $50 per day, but not other income, because of attendance at hearings, proceedings, or trials at **our** request.
6. Reasonable expenses for emergency first aid **you** administer to others at the scene of an **accident** involving any **auto** covered by this policy.

EXCLUSIONS

A. Coverage under this Part A, including **our** duty to defend, does not apply to:
   1. **Bodily injury** or **property damage** caused intentionally by or at the direction of an **insured.**
   2. **Property damage** to property owned or being transported by that person.
   3. **Property damage** to property:
      a) rented to;
      b) used by; or
      c) in the care, custody, or control of

      that person. This exclusion does not apply to a rented residence or rented private garage.
   4. **Bodily injury** to an employee or fellow employee of any **insured** person arising out of the course of employment. This exclusion does not apply to **bodily injury** to a domestic employee unless Workers' Compensation benefits, disability benefits, or similar benefits are required or available for that domestic employee.
   5. Liability arising out of the ownership or operation of an **auto** while it is being used to carry persons or property for compensation or a fee. This exclusion does not apply to a share-the-expense car pool.
   6. Liability arising out of the ownership, operation or use of an **auto** for wholesale or retail delivery,

including, but not limited to, delivery of magazines, newspapers, food, pizza, or any other product.

7. Any person while employed or otherwise engaged in the **business** of:
   a) selling;
   b) repairing;
   c) servicing;
   d) storing;
   e) parking;
   f) road testing;
   g) delivering; or
   h) leasing

   vehicles designed for use mainly on public highways.

   However, coverage does apply to **you** or a **family member** when using **your covered auto**.

8. Maintaining or using any vehicle while that person is employed or otherwise engaged in any **business** not described in Exclusion 7. If a **business** use surcharge is noted in the Declarations for an **auto** shown in the Declarations, this exclusion does not apply to the ownership, maintenance or use of that **auto** by:
   a) **you**; or
   b) any **family member**.

9. Any person using an **auto** beyond the scope of the owner's express or implied permission.

10. **Bodily injury** or **property damage** for which that person:
    a) is an **insured** under a nuclear energy liability policy; or
    b) would be an **insured** under a nuclear energy liability policy but for its termination upon exhaustion of its limit of liability.

    For the purpose of this exclusion a nuclear energy liability policy means a policy issued by any of the following or their successors:
    1. Nuclear Energy Liability Insurance Association;
    2. Mutual Atomic Energy Liability Underwriters; or
    3. Nuclear Insurance Association of Canada.

11. **Bodily injury** or **property damage** arising out of the ownership, maintenance or use of:
    a) a motorcycle or any motorized vehicle having fewer than four wheels or more than six wheels; or
    b) an all-terrain vehicle regardless of the number of wheels it has; or
    c) any self-propelled vehicle not licensed for use on public roads; or
    d) any vehicle weighing in excess of 10,000 pounds.

12. **Bodily injury** or **property damage** arising out of any person's liability for the ownership, maintenance or operation of **your covered auto** when it:
    a) is being rented or leased to others; or
    b) has been sold to another; or
    c) is under a conditional sales agreement by **you** to another.

13. **Bodily injury** or **property damage** arising out of the ownership or maintenance of an **auto** while it is being operated in or while in practice or preparation for any race event, hill climb, demonstration, speed contest or performance contest regardless of whether such event is prearranged or organized.

14. **Bodily injury** or **property damage** arising out of any liability assumed by an **insured** under any contract or agreement.

15. **Bodily injury** or **property damage** for which the United States Government is held responsible under the Federal Tort Claims Act.

16. **Bodily injury** or **property damage** to any person while **occupying** any **auto**:
    a) being used in any unlawful activity (other than a traffic violation), illicit trade or transportation; or
    b) used or operated in an attempt to flee a law enforcement agent;

    and such person is a willing participant in such activity listed in a) or b) above.

17. **Bodily injury** or **property damage** caused by war (declared or undeclared), civil war, insurrection, rebellion, revolution, nuclear reaction or radioactive contamination, or any consequence of any of these.

B. **We** do not provide Liability Coverage for the ownership, maintenance or use of:
   1. Any **auto**, other than **your covered auto,** which is:
      a) owned by **you**; or
      b) furnished or available for **your** regular use.
   2. Any **auto**, other than **your covered auto,** which is:
      a) owned by any **family member;** or
      b) furnished or available for the regular use of any **family member.**

      However, this exclusion, B.2., does not apply to **you.**

C. **We** do not provide Liability Coverage for any **insured** for **bodily injury** to **you** or any **family member** to the extent that the limits of liability for this coverage exceed the limits of liability required by the Missouri Financial Responsibility Law.

LIMIT OF LIABILITY

The limit of liability shown in the Declarations for each person for Bodily Injury Liability Coverage is **our** maximum limit of liability for all damages for **bodily injury,** sustained by any one person in any one **auto accident**. This includes all derivative claims arising out of said **bodily injury** which includes, but is not limited to, damages for care, loss of service or death, loss of consortium, loss of society or companionship. Subject to this limit for each person, the limit of liability shown in the Declarations for each **accident** for Bodily Injury Liability Coverage is **our** maximum limit of liability for all damages for **bodily injury** resulting from any one **auto accident**. This includes all derivative claims arising out of said **bodily injury** which includes, but is not limited to, damages for care, loss of service or death, loss of consortium, loss of society or companionship. The limit of liability shown in the Declarations for each **accident** for Property Damage Liability Coverage is **our** maximum limit of liability for all damages to all property resulting from any one **auto accident**. This is the most **we** will pay under Bodily Injury Liability Coverage or Property Damage Liability Coverage, whichever is applicable, as a result of any one **auto accident** regardless of the number of:

1. **Insureds**;
2. Claims made;
3. **Autos** or premiums shown in the Declarations;
4. **Vehicles** involved in the **auto accident**;
5. Premiums paid; or
6. Lawsuits brought.

An **auto** and attached **trailer** are considered one **auto.** Therefore, the limit of liability will not be increased for an **accident** involving an **auto** with an attached **trailer.**

Any amount payable under this coverage to or for an injured person will be reduced by any payment made to that person under PART B - MEDICAL PAYMENTS COVERAGE and PART C - UNINSURED MOTORISTS COVERAGE of this policy.

No one will be entitled to duplicate payments for the same elements of damage.

OUT OF STATE COVERAGE

If an **auto accident** to which this policy applies occurs in any state or province other than the one in which **your covered auto** is principally garaged, **we** will interpret **your** policy for that **auto accident** as follows:

If the state or province has:

1. A financial responsibility or similar law specifying limits of liability for **bodily injury** or **property damage** higher than the limit shown in the Declarations, **your** policy will provide the higher specified limit.
2. A compulsory insurance or similar law requiring a nonresident to maintain insurance whenever the nonresident uses an **auto** in that state or province, **your** policy will provide at least the required minimum amounts and types of coverage.

However, if the **auto accident** involves a vehicle, covered under this policy, which is either registered in such other state or province or has been operated in such other state or province for 30 days or more in the preceding 365 days, then the coverage under this policy shall not be modified in any way. This restriction will not apply, however, if **you** have disclosed on **your** application for this insurance that such operators, such as students or individuals in the military, will be operating **your covered auto** in another designated state or province for 30 days or more each year. This policy will then conform to that designated state's minimum compulsory coverage limits for non-residents as required by that state's Financial Responsibility Law.

FINANCIAL RESPONSIBILITY REQUIRED

When this policy is certified as proof of financial responsibility, this policy will comply with the law to the extent required. **You** must reimburse **us** if **we** make a payment that **we** would not have made if this policy was not certified as proof of financial responsibility.

OTHER INSURANCE

If there is other applicable liability insurance, **we** will pay only **our** share of the damages. **Our** share is the proportion that **our** limit bears to the total of all applicable limits. However, any insurance **we** provide for an **auto you** do not own shall be excess over any other collectible insurance.

PART B - MEDICAL PAYMENTS COVERAGE

INSURING AGREEMENT

Subject to the limit of liability shown on the Declarations, if **you** pay a premium for Medical Payments Coverage, **we** will pay reasonable expenses incurred for necessary medical and funeral services because of **bodily injury:**

1. Caused by an **auto accident**; and
2. Sustained by an **insured.**

We will pay only those medical expenses incurred within (3) years from the date of the **accident**.

"Insured" as used in PART B means:

1. **You** or any **family member**:
   a) while **occupying** a motor vehicle**;** or
   b) as a pedestrian when struck by a motor vehicle or a **trailer** of any type designed for use mainly on public roads.
2. Any other person while **occupying your covered auto** when **your covered auto** is being used within the scope of the named insured's permission.

EXCLUSIONS

We do not provide Medical Payments Coverage for any person for **bodily injury:**

1. Arising out of the ownership or operation of an **auto** while it is being used to carry persons or property for compensation or a fee. This exclusion does not apply to a share-the-expense car pool.
2. Arising out of the ownership, operation of an **auto** for wholesale or retail delivery, including but not limited to, delivery of magazines, newspapers, food, pizza, or any other product.
3. Occurring during the course of employment if Worker's Compensation benefits are required or available for the **bodily injury**.
4. Sustained while **occupying** any **auto**, other than **your covered auto**, which is:
   a) owned by **you**; or
   b) furnished or available for **your** regular use.
5. Sustained while **occupying,** any **auto** (other than **your covered auto**) which is:
   a) owned by any **family member;** or
   b) furnished or available for the regular use of any **family member.**

   However, this Exclusion 5. does not apply to **you**.
6. Sustained while **occupying** any **auto** being used beyond the scope of the owner's express or implied permission.
7. Resulting from the maintenance or use of any **auto** while that person is engaged in the **business** of:
   a) selling;
   b) repairing;
   c) servicing;
   d) storing;
   e) parking;
   f) road testing;
   g) delivering; or
   h) leasing

   vehicles designed for use mainly on public highways.

   However, coverage does apply to **you** or a **family member** when using **your covered auto**.
8. Resulting from the maintenance or use of any **auto** while that person is employed or otherwise engaged in any **business** not described in Exclusion 7. If a **business or artisan** use surcharge is noted in the Declarations for an **auto** shown in the Declarations, this exclusion does not apply to:
   a) **you;** or
   b) any **family member**.
9. Caused by or as a consequence of:
   a) war (declared or undeclared);
   b) civil war;
   c) insurrection;
   d) rebellion or revolution;
   e) radioactive contamination;
   f) nuclear reaction or radiation, whether controlled or uncontrolled or however caused.
10. Sustained while **occupying**:
    a) a motorcycle or any motorized vehicle having fewer than four wheels or more than six wheels; or
    b) an all-terrain vehicle regardless of the number of wheels it has; or
    c) any self-propelled vehicle not licensed for use on public roads; or
    d) any vehicle weighing in excess of 10,000 pounds.
11. Sustained while **occupying** any **auto**:
    a) being used in any unlawful activity (other than a traffic violation), illicit trade or transportation; or
    b) used or operated in an attempt to flee a law enforcement agent;

    and that person is a willing participant in such activity listed in a) and b) above.
12. Resulting from ownership, maintenance or use of an **auto** while it is being operated in or while in practice or preparation for any race, hill climb, demonstration, speed contest or performance contest regardless of whether such event is prearranged or organized.

LIMIT OF LIABILITY

The limit of liability shown in the Declarations for this coverage is **our** maximum limit of liability for each person injured in any one **accident** regardless of the number of:

1. Claims made;
2. **Autos** or premiums shown in the Declarations;
3. **Vehicles** involved in the **auto accident**;
4. **Insureds**;
5. Lawsuits brought; or
6. Premiums Paid.

Any amounts otherwise payable for expenses under this coverage shall be reduced by any amounts paid or payable for the same expenses under any Auto Liability, Uninsured Motorists, or Underinsured Motorists Coverage provided by this policy.

No one will be entitled to duplicate payments for the same elements of damage.

OTHER INSURANCE

If there is other applicable **auto** medical payments insurance **we** will pay only **our** share of the damages. **Our** share is the proportion that **our** limit of liability bears to the total of all applicable limits. However, any insurance **we** provide with respect to an **auto you** do not own shall be excess over any other **auto** insurance providing payments for medical or funeral expenses. Further, any coverage afforded under this Part B shall be excess over any Personal Injury Protection or Workers' Compensation benefits required by law.

PART C - UNINSURED MOTORISTS COVERAGE

INSURING AGREEMENT

If **you** pay a premium for this coverage, **we** will pay damages, except punitive or exemplary damages, which an **insured** is legally entitled to recover from the owner or operator of an **uninsured motor vehicle** because of **bodily injury**:

1. Sustained by an **insured**; and
2. Caused by an **auto accident**.

The owner's or operator's liability for these damages must arise out of the ownership, maintenance or use of an **uninsured motor vehicle**.

We will pay under this coverage only after the limits of liability under any applicable liability bonds or policies have been paid.

Any judgment for damages arising out of a lawsuit is not binding on **us** unless **we** have consented in writing to the filing of the lawsuit.

DEFINITIONS

"**Insured**" as used in this Part means:

1. **You**
2. Any **family memeber** who does not own an auto.
3. Any other person **occupying your covered auto** within the scope of the owner's express or implied permission.
4. Any personal representative for damages that person is legally entitled to recover because of **bodily injury** to which this coverage applies sustained by a person listed in 1. or 2. or 3. above.

"Uninsured motor vehicle" means a land motor vehicle or **trailer**:

1. Not insured by a bodily injury liability bond or policy at the time of the **accident**.
2. Insured by a bodily injury liability bond or policy which applies at the time of the **accident**, but its limit of liability is less than the minimum limit specified by the Financial Responsibility law of the state in which **your covered auto** is principally garaged.
3. Which is a hit-and-run vehicle whose operator or owner cannot be identified and which hits or which causes such operator or owner causesan **accident** resulting in **bodily injury** without hitting:
   a. **You** or any **family member.**
   b. A vehicle which **you** or any **family member** are **occupying;** or
   c. **Your covered auto.**
4. For which a bodily injury liability bond or policy applies at the time of the **accident** but the bonding or insuring company:
   a) denies coverage; or
   b) is or becomes insolvent.

However, **"uninsured motor vehicle"** does not include any vehicle or equipment:

1. Owned or operated by a self-insurer under any applicable motor vehicle law, except a self-insurer which is or becomes insolvent.
2. Operated on rails or crawler treads.
3. Which is designed mainly for use off public roads while not on public roads.
4. While located for use as a residence or premises.
5. Owned by or furnished or available for the regular use of **you** or any **family member.**

EXCLUSIONS

A. **We** do not provide Uninsured Motorists Coverage for **bodily injury** sustained by any **insured**:
   1. If that person or the legal representative settles the **bodily injury** claim without **our** written consent. However, this exclusion does not apply if such settlement does not prejudice **our** right of recovery.
   2. While **occupying your covered auto** while it is being used to carry persons or property for compensation or a fee. This exclusion does not apply to a share-the-expense car pool.
   3. While **occupying your covered auto** while it is being used for wholesale or retail delivery including, but not limited to, delivery of magazines, newspapers, food, pizza, or any other product.
   4. Using an **auto** or **occupying** an **auto** which is used without the express or implied permission of the owner.
   5. While **occupying** any **auto**:
      a) being used in any unlawful activity (other than a traffic violation), illicit trade or transportation; or
      b) used or operated in an attempt to flee a law enforcement agent;

   and such person is a willing participant in such activity listed in a) or b) above.

B. **We** do not provide Uninsured Motorists Coverage for **bodily injury** sustained by a **family member** who does not own an **auto,** while **occupying**, or when struck by any motor vehicle **you** own which is insured for this coverage on a primary basis under any other policy.

C. This coverage shall not apply directly or indirectly to benefit any insurer or self-insurer under any of the following or similar law:
   a. worker's compensation law; or
   b. disability benefits law.

LIMIT OF LIABILITY

A. If **bodily injury** is sustained in an **accident** by **you** or **any family member.**

1. **Our** maximum limit of liability for all damages, including damages for care, loss of services or death, arising out of **bodily injury** sustained by any one person in any such **accident** is the sum of the limits of liability shown in the Declarations for each person for Uninsured Motorists Coverage;
2. Subject to the maximum limit for each person described in 1. above, **our** maximum limit of liability for all damages including damages for care, loss of services or death, arising out of **bodily injury** resulting from any one **accident** is the sum of the limits of liability shown in the Declarations for each **accident** for Uninsured Motorists Coverage;
3. Subject to the maximum limits of liability set forth in 1. and 2. above:
   a. the most **we** will pay for **bodily injury** sustained in such **accident** by an **insured** other than **you** or any **family member** is that **insured's** pro-rata share of each person or each **accident** limit of liability shown in the Declarations applicable to the vehicle that **insured** was **occupying** at the time of the **accident**; and
   b. **you** or any **family member** who sustains **bodily injury** in such **accident** will also be entitled to a pro-rata share of the each person or each accident limit described in paragraph 3.a. above.

A person's pro-rata share shall be the proportion that that person's damages bears to the total damages sustained by all **insureds**.

The maximum limit of liability is the most **we** will pay regardless of the number of:

1. **Insureds**;
2. Claims made;
3. **Autos** or premiums shown in the Declarations;
4. Vehicles involved in the **accident**; or
5. Lawsuits brought.

B. If **bodily injury** is sustained by any **insured** other than **you** or any **family member** in an **accident** in which neither **you** nor any **family member** sustained **bodily injury,** the limit of liability shown in the Declarations for each person for Uninsured Motorists Coverage is **our** maximum limit of liability for all damages, including damages for care, loss of services or death, arising out of **bodily injury** sustained by any one personin any such **accident**. Subject to this limit for each person, the limit of liability shown in the Declarations for each **accident** for Uninsured Motorists Coverage applicable to **your covered auto** the **insured** was occupying at the time of the **accident.** is our maximum limit of liability for all damages for bodily injury, including damages for care, loss of services or death resulting from any such **accident**. This is the most **we** will pay regardless of the number of:

1. **Insureds**;
2. Claims made;
3. **Autos** or premiums shown in the Declarations;
4. Vehicles involved in the **accident**; or
5. Lawsuits brought.

C. No one will be entitled to receive duplicate payments for the same elements of damage under this coverage and:

1. Part A of this policy; or
2. Any Underinsured Motorists Coverage provided by this policy.

D. **We** will not make a duplicate payment under this coverage for any element of **damage** for which payment has been made by or on behalf of persons or organizations who may be legally responsible. This includes all sums paid under Part A but does not include any amounts paid or payable under:

1. Part B; or
2. Any workers' compensation law, disability benefits law or similar law.

E. No one will be entitled to receive duplicate payment for the same elements of damages.

OTHER INSURANCE

If there is other applicable insurance **we** will pay only **our** share of the damages. **Our** share is the proportion that **our** limit of liability bears to the total of all applicable limits. However, any insurance **we** provide with respect to an **auto you** do not own shall be excess over any other insurance.

TRUST AGREEMENT

If **we** make a payment to an **insured** under this coverage:

1. **We** are entitled to recover from the **insured** an amount equal to such payment if there is a legal settlement made on his behalf against any person or organization legally responsible for the **bodily injury** and/or **property damage** to the extent the **insured** is made whole.
2. The **insured** must hold in trust for **us** all rights which he has to recover money from any person or organization legally responsible for **bodily injury** and/or **property damage**.
3. The **insured** must do everything proper to secure **our** rights of recovery and do nothing to prejudice these rights.
4. If **we** ask the **insured** in writing, the **insured** shall take the necessary or appropriate action, through a representative designated by **us**, to recover payment as damages from the responsible person or organization. If there is a recovery, then **we** shall be reimbursed out of

the recovery for expenses, costs and attorney's fees incurred in connection with this recovery.

5. The **insured** must execute and deliver to **us** any legal instruments or papers necessary to secure the rights and obligations of the **insured** and **us** as established here.

ARBITRATION

A. If **we** and an **insured** disagree:
   1. whether the **insured** is legally entitled to recover damages from the owner or operator of an **uninsured motor vehicle**; or
   2. as to the amount the **insured** is legally entitled to recover from the owner or operator of an **uninsured motor vehicle** then either party may propose arbitration.

   then either party may propose arbitration.

   Both **we** and the **insured** must agree to arbitration.

   However, disputes concerning coverage shall not be arbitrated.

B. If **we** and an **insured** agree to arbitration, the following procedures shall apply:
   1. The arbitration shall be conducted by a single neutral arbitrator.
   2. In the event an arbitrator cannot be agreed upon, a judge of a court having jurisdiction will appoint the arbitrator.

C. In the event arbitration is agreed upon, the costs of the arbitrator will be shared equally by **us** and the **insured.** All other expenses, including but not limited to attorney fees and witness fees, shall be paid by the party which incurs the expense.

D. In the event arbitration is agreed upon, the arbitration will take place in the county where the **insured** lives at the time of **accident**. Local state court rules of procedure and evidence shall apply. The written decision by the arbitrator shall be binding on **us** and the **insured**, subject to the terms of the policy.

PART D - COVERAGE FOR DAMAGE TO YOUR AUTO

INSURING AGREEMENT

If **you** pay a premium for this coverage, **we** will pay for direct and accidental **loss** to **your covered auto** including its equipment attached thereto.

We will pay for **loss** to **your covered auto** caused by:

1. **Collision** only if the Declarations indicate that Collision Coverage is provided for that **auto**.
2. Other than Collision only if the Declarations indicate that Other Than Collision Coverage is provided for that **auto**.

Our payment will be reduced by any deductible shown in the Declarations.

"**Collision**" means the upset of **your covered auto** or its impact with another vehicle or object.

Loss caused by the following is considered Other than Collision:

1. Missiles or falling objects;
2. Fire;
3. Theft or larceny;
4. Explosion or earthquake;
5. Windstorm;
6. Hail, water or flood;
7. Malicious mischief or vandalism;
8. Riot or civil commotion;
9. Contact with bird or animal; or
10. Breakage of glass, except as a result of **collision**.

"**Your covered auto**" as used in this part means:

1. Any **auto** or **trailer** shown in the Declarations.
2. Any **auto** having a Gross Vehicle Weight as specified by the manufacturer of less than 10,000 pounds on the date **you** become the owner, but only if **you** have asked **us** to insure it as set forth below:
   a) If the **auto you** acquire replaces an **auto** shown in the Declarations, it will have the same coverage as the **auto** it replaced, if **you:**
      (1) acquire the **auto** during the policy period; and
      (2) ask **us** to insure it within 30 days after **you** become the owner.
   b) If the **auto you** acquire is in addition to any **auto** shown in the Declarations, it will have the broadest coverage **we** now provide for any **auto** shown in the Declarations, if **you**:
      (1) acquire the **auto** during the policy period; and
      (2) ask **us** to insure it within 30 days after **you** become the owner.
      (3) **we** insure all **autos you** own.

   If **you** do not notify **us** within the time limits noted above, no coverage exists under this part.
3. Any **auto you** rent which is not owned by **you** while used on a temporary basis as a substitute for any other **auto** described in this definition which is out of normal use because of its:
   a) breakdown;
   b) repair;
   c) servicing;
   d) **loss**; or
   e) destruction.
4. Any **auto** rented by **you** for 60 days or less and being operated by **you** or any **family member** at the time of **loss**.

"Customized equipment and parts" means equipment, devices, accessories, changes and enhancements, other than those installed by the original manufacturer, which alter the appearance or performance of an **auto.** This includes any

electronic equipment, antennas and other devices used exclusively to send or receive audio, visual or data signals, or play back recorded media, which are permanently installed in **your covered auto** using bolts, brackets or slide-out brackets.

TOWING AND STORAGE CHARGES

In addition, after an **auto accident** for which this coverage is provided, **we** will pay reasonable towing and storage charges **you** or any **family member** are legally responsible for in transporting and storing **your covered auto.**

TRANSPORTATION EXPENSES

In addition, **we** will pay, without application of a deductible, up to $20 per day, to a maximum of $600 for transportation expenses incurred from a commercially licensed rental agency by **you** in the event of the total theft of **your covered auto**. This applies only if the Declarations indicate that Other than Collision is provided for that **auto**.

We will pay only expenses incurred during the period:

1. Beginning 48 hours after the theft; and
2. Ending when **your covered auto** is returned to use or **we** offer to pay for its **loss**.

However, if **you** purchase Rental Reimbursement Coverage with the same or higher limits of coverage than this section provides, then the provisions and limits of the Rental Reimbursement Coverage shall apply to the total theft of **your covered auto.**

Rental Reimbursement Coverage cannot be combined or stacked for any **loss** with the Transportation Expenses Coverage provided under this section.

EXCLUSIONS

We will not pay for:

1. **Loss** to **your covered auto** which occurs while it is being used to carry persons or property for compensation or a fee. This exclusion does not apply to a share-the-expense car pool.
2. **Loss** to **your covered auto** which occurs while it is being used for wholesale or retail delivery, including, but not limited to, delivery of magazines, newspapers, food, pizza, or any other product.
3. Damage due and confined to:
   a) wear and tear;
   b) freezing;
   c) mechanical or electrical breakdown or failure; or
   d) road damage to tires.

   This exclusion does not apply if the damage results from the total theft of **your covered auto**.
4. **Loss** due to or as a consequence of:
   a) radioactive contamination;
   b) war (declared or undeclared);
   c) civil war;
   d) insurrection; or
   e) rebellion or revolution.
5. **Loss** to a **trailer** which is not shown in the Declarations.
6. **Loss** to **your covered auto** due to forfeiture ordered by the courts or destruction or confiscation by governmental or civil authorities. This exclusion does not apply to the interests of Loss Payees in **your covered auto**.
7. **Loss** to **your covered auto** while employed or otherwise engaged in the **business** of:
   a) selling;
   b) repairing;
   c) servicing;
   d) storing;
   e) parking;
   f) road testing;
   g) delivering; or
   h) leasing

   vehicles designed for use mainly on public highways.

   However, coverage does apply to **you** or a **family member** when using **your covered auto.**
8. **Loss** to **your covered auto** while maintained or used by any person employed or otherwise engaged in any **business or artisan** not described in Exclusion 7. If a **business** use surcharge is noted in the Declarations for an **auto** shown in the Declarations, this exclusion does not apply to the ownership, maintenance or use of that **auto** by:
   a) **you**; or
   b) any **family member**.
9. **Loss** to **your covered auto** while **you** or any **family member** or anyone driving with express or implied permission from **you** or any **family member**:
   a) is using **your covered auto** in any unlawful activity (other than a traffic violation); or
   b) using or operating **your covered auto** to flee any law enforcement agent;

   And such person is a willing participant in such activity listed in a) and b) above.
10. **Loss** to **your covered auto** which occurs while being operated in, or while in practice or preparation for any race, hill climb, demonstration, speed contest or performance contest regardless of whether such event is prearranged or organized.
11. **Loss** due to theft, conversion, secretion or fraudulent disposal of covered property by **you** or any **family member**.
12. **Loss** due to and resulting from intentional acts committed by **you** or any **family member**.
13. **Loss** to equipment designed or used for the detection of radar.
14. **Loss** to wearing apparel, tools or personal effects.
15. **Loss** to tapes, records, compact discs, or other media, or any other accessories used with electronic equipment designed to receive or transmit audio, visual or data signals.
16. **Loss** to **customized equipment and parts** which for any one item for any aggregate of items exceed $1,000.

LIMIT OF LIABILITY

A. **Our** limit of liability for **loss** will be the lesser of the:
   1. **Actual cash value**;
   2. Amount necessary to repair or replace the property with other property of like kind and quality less deduction for any applicable **depreciation**; or
   3. Stated amount shown in the Declarations, if applicable.

B. 1. An adjustment for **depreciation** and physical condition will be made in determining **actual cash value** in the event of a total loss.
   2. If a repair or replacement results in better than like kind or quality, **we** will not pay for the amount of the betterment.

C. Further, if there is a stated amount **you** declared on the application or endorsement for a specific **auto** listed and shown in the Declarations, that stated amount will be the total Limit of Liability applicable for **loss** to that **auto**, including its **customized equipment and parts**.

D. In the repair of **your covered auto** under the physical damage coverage provisions of this policy, **we** may specify the use of automobile parts not made by the original manufacturer. These parts are required to be at least equal in terms of fit, quality, performance and warranty to the original manufacturer parts they replace.

E. **Customized equipment and parts** - unless **you** pay a premium for Additional Equipment Coverage, and it is shown on the Declarations page or on the applicable schedule, the limit of liability for **loss** to **customized equipment and parts** is the lesser of:

   1. the **actual cash value** of such **customized equipment and parts**, reduced by the applicable deductible and its salvage value if **you** or the owner retain the salvage;
   2. the amount necessary to repair or replace such **customized equipment and parts**, reduced by the applicable deductible; or
   3. $1000.

   However, if the **actual cash value** of **your covered auto** without the **customized equipment and parts** is less than $1000, the most **we** will pay is the **actual cash value** of **your covered auto.**

F. **Our** liability for the cost of repairing **your covered auto** and its equipment is limited to the amount necessary to perform physical repairs to the stolen or damaged property. Part D of **your** policy - Coverage for Damage to Your Auto - does not cover, and **we** will not pay for, **diminution in value.**

Our payment for **loss** will be reduced by any applicable deductible shown in the Declarations for **Collision** and/or Other than Collision and/or Additional Equipment Coverage, if selected.

No one will be entitled to receive duplicate payment for the same elements of damage.

PROOF OF LOSS

When **we** request it, **you** must file a written proof of **loss** within 60 days from the date of **our** request or there will be no coverage for the **loss** claimed under PART D.

PAYMENT OF LOSS

We may pay for the **loss** in money or repair or replace the damaged or stolen property. **We** may, at **our** expense, return any stolen property to:

1. **You**; or
2. The address shown on the Declarations Page of this policy.

If **we** return stolen property, **we** will pay for any direct physical damage to **your covered auto** or its equipment resulting from the theft. **We** may keep all or part of the property at an agreed or appraised value. **You** do not have the right to abandon salvage to **us**.

NO BENEFIT TO BAILEE

This insurance shall not directly or indirectly benefit any carrier or other bailee for hire.

OTHER INSURANCE

If other insurance also covers the **loss**, **we** will pay only **our** share of the **loss**. **Our** share is the proportion that **our** limit of liability bears to the total of all applicable limits. Any applicable deductible of this policy will be taken in a proportionate share based on the applicable deductibles of each policy. However, any insurance **we** provide for an **auto you** do not own shall be excess over any other insurance.

APPRAISAL

If **we** and **you** do not agree on the amount of **loss**, either may demand an appraisal of the **loss**. In this event, each party will select a competent appraiser. The two appraisers will select an umpire. The appraisers will state separately the **actual cash value** and the amount of **loss**. If they fail to agree, they will submit their differences to the umpire. A decision agreed to by any two will be binding. Each party will:

1. Pay its chosen appraiser; and
2. Bear the expenses of the appraisal and umpire equally.

We do not waive any of **our** rights under this policy by agreeing to an appraisal.

PART E - DUTIES AFTER AN ACCIDENT OR LOSS - FILING A CLAIM

GENERAL DUTIES

We must be notified promptly of how, when and where the **accident** or **loss** happened. Notice should also include the names and addresses of any injured persons and of any witnesses. Failure to give notice as required herein may render this policy voidable. Failure to comply with any of the duties under this Part E may result in denial of coverage and relieve **us** of all duties to investigate, settle, defend, pay any judgment or otherwise honor any claims made against an **insured**.

A person seeking coverage must:

1. Cooperate with **us** in the investigation, settlement or defense of any claim or lawsuit.
2. Promptly send **us** copies of any notices or legal papers received in connection with the **accident** or **loss**.
3. Submit as often as **we** require:
   a) to physical exams by physicians **we** select. **We** will pay for these exams.
   b) to examinations under oath outside the presence of any person other than **your** attorney.
4. Authorize **us** to obtain:
   a) medical reports; and
   b) other pertinent records.
5. Submit a sworn statement as proof of **loss** as **we** require.

ADDITIONAL DUTIES FOR UNINSURED MOTORISTS COVERAGE

A person seeking Uninsured Motorists Coverage must also in addition to the duties stated above:

1. Notify the police as soon as possible of any **accident**.
2. Notify the police within 24 hours of an **accident** if a hit-and-run or unknown driver is involved.
3. Serve a copy of any legal action and all pleadings on **us** as required by law.

ADDITIONAL DUTIES FOR COVERAGE FOR DAMAGE TO YOUR AUTO

A person seeking Coverage For Damage To Your Auto must also in addition to the duties stated above:

1. Notify the police within 24 hours after discovery of the **loss**, if **your covered auto** or any of its equipment is stolen or vandalized.
2. Take reasonable steps after **loss** to protect **your covered auto** and its equipment from further **loss**. **We** will pay reasonable expenses incurred to do this.
3. Permit **us** to inspect and appraise the damaged property before its repair or disposal.

PART F - GENERAL PROVISIONS

BANKRUPTCY

Bankruptcy or insolvency of the **insured** shall not relieve **us** of any obligations under this policy.

CHANGES

The premium for each of **your covered autos** is based on information **we** have received from **you** or other sources. **You** agree:

1. That if any of this information material to the development of the policy premium is incorrect, incomplete or changed, **we** may adjust the premium accordingly during the policy period.
2. To cooperate with **us** in determining if this information is correct and complete, and to advise **us** of any changes.

Any adjustment of **your** premium will be made using **our** rules in effect at the time of the change. Premium adjustments may be made as a result of a change in:

1. **Autos** insured by the policy, including changes in use;
2. Drivers;
3. Coverages or coverage limits;
4. Rating territory; or
5. Eligibility for discounts or surcharges or other premium credits or debits.

We may revise **your** policy coverages to provide more protection without additional premium charge. If **we** do this and **you** have the coverage which is changed, **your** policy will automatically provide the additional coverage as of the date the revision is effective in . Otherwise, this policy contains all of the coverage agreements between **you** and **us**. Its terms may not be changed or waived except by an endorsement issued by **us**.

LEGAL ACTION AGAINST US

No legal action may be brought against **us** until there has been full compliance with all the terms of this policy. In addition, under Part A, no legal action may be brought against **us** unless:

1. **we** agree in writing that the **insured** has an obligation to pay; or
2. the amount of that obligation has been finally determined by judgment after trial.

No person or organization has any right under this policy to bring legal action against **us** or to make **us** a party to any legal proceeding to determine the liability of the **insured**.

OUR RIGHT TO RECOVER PAYMENT

A. If **we** make a payment under this policy and the person to or for whom payment was made has a right to recover damages from another, **we** shall be subrogated to that right. That person shall:
   1. do whatever is necessary to enable **us** to exercise **our** rights; and
   2. do nothing after **loss** to prejudice them; and

3. deliver to **us** any legal papers relating to that recovery.

Our rights under this paragraph do not apply to payments made under Part B • Medical Payments Coverage.

B. If **we** make a payment under this policy and the person to or for whom payment is made recovers damages from another, that person shall:
   1. Hold in trust for **us** the proceeds of the recovery; and
   2. Reimburse **us** to the extent of **our** payment.

POLICY PERIOD AND TERRITORY

This policy applies only to **auto accidents** or **losses** to **your covered auto** which occur:

1. During the policy period as shown in the Declarations; and
2. Within the policy territory.

The policy territory is:

1. The United States of America, its territories or possessions;
2. Puerto Rico; or
3. Canada.

This policy also applies to **loss** to, or **auto accidents** involving, **your covered auto** while being transported between their ports.

TERMINATION - CANCELLATION, NONRENEWAL, AUTOMATIC TERMINATION, OTHER TERMINATION PROVISIONS

A. Cancellation. This policy may be cancelled during the policy period as follows:
   1. The named insured shown in the Declarations may cancel by:
      a) returning this policy to **us**; or
      b) giving **us** advance written notice of the date cancellation is to take effect.
   2. **We** may cancel by mailing to the named insured shown in the Declarations at the address last shown in this policy:
      a) at least 10 days notice:
         1) if cancellation is for nonpayment of premium; or
         2) if notice is mailed during the first 60 days this policy is in effect and this is not a renewal or continuation policy; or
      b) at least 30 days notice by United States Post Office certificate of mailing in all other cases.
   3. After this policy is in effect for 60 days, or if this is a renewal or continuation policy, **we** will cancel only:
      a) for nonpayment of premium; or
      b) if the named insured's driver's license has been suspended or revoked. This must have occurred:
         1) during the policy period; or
         2) since the last anniversary of the original effective date if the policy period is other than 1 year.

      However, if more than one person is a named insured shown in the Declarations and only one named person's driver's license has been suspended or revoked, **we** may not cancel this policy; but **we** may issue an exclusion to that named person providing that coverage will not be afforded under the terms of this policy while that person is operating **your covered auto** during any period of suspension or revocation.

B. Nonrenewal. If **we** decide not to renew or continue this policy, **we** will mail notice by United States Post Office certificate of mailing to the named insured shown in the Declarations at the address last shown in this policy. Notice will be mailed at least 30 days before the end of the policy period. If the policy period is:
   1. Less than 6 months, **we** will have the right not to renew or continue this policy at the end of the policy period.
   2. Six months or longer, but less than one year, **we** will have the right not to renew or continue this policy at the end of the policy period.
   3. One year or longer, **we** will have the right not to renew or continue this policy at each anniversary of its original effective date.

C. Automatic Termination. If **we** offer to renew or continue **your** policy and **you** or **your** representative do not accept, this policy will automatically terminate at the end of the current policy period. Failure to pay the required renewal or continuation premium when due shall mean that **you** have not accepted **our** offer.

   If **you** obtain other insurance on **your covered auto**, any similar insurance provided by this policy will terminate as to that **auto** on the effective date of the other insurance.

D. Dishonored / Insufficient Checks, Credit Cards or other remittance. .If **you** pay **your** initial premium by check credit card or other remittance, other than cash. the coverage offered by this Policy is conditioned on the check, or credit card or other remittance being honored by the bank when presented for payment. If the check, credit card or other remmitance is not honored, then **we** shall be deemed not to have accepted the check, credit card or other remmitance and this policy shall be void from inception. If we offer to renew the policy and you pay your renewal premium by check, credit card or other remittance, other than cash, the coverage offered by this renewal policy is conditioned on the check,

credit card or other remittance being honored by the bank If the check, credit card or other remittance is not honored, then we shall be deemed not to have accepted the check, credit card or other remittance, and you shall be deemed not to have accepted our offer ot renew, and this renewal shall be void from inception.

E. Other Termination Provisions.

1. If the law in effect in at the time this policy is issued, renewed or continued:
   a) Requires a longer notice period;
   b) Requires a special form of or procedure for giving notice; or
   c) Modifies any of the stated termination reasons; **we** will comply with those requirements.
2. **We** may deliver any notice instead of mailing it. Proof of mailing of any notice shall be sufficient proof of notice.
3. If this policy is cancelled, the premium refund, if any, will be computed according to **our** manuals. However, making or offering to make the refund is not a condition of cancellation.
4. The effective date of cancellation stated in the notice shall terminate all coverages under this policy.

TRANSFER OF YOUR INTEREST IN THIS POLICY

A. **Your** rights and duties under this policy may not be assigned without **our** written consent. However, upon the death of the named insured shown in the Declarations, coverage will be provided until the end of the policy period for:

1. The surviving spouse, if a resident in the same household at the time of death.
2. The legal representative of the deceased person while acting within the scope of duties of a legal representative. This applies only with respect to the representative's legal responsibility to maintain or use **your covered auto**.

B. Coverage will only be provided until the end of the policy period or cancellation, whichever is less.

MISREPRESENTATION AND FRAUD

The statements made by **you** in the application are deemed to be representations. If any representation contained in the application is false, misleading or materially affects the acceptance or rating of this risk by **us**, by either direct misrepresentation, omission, concealment of facts or incorrect statements, this policy will be null and void from its inception.

If any representation contained in any notification of change is false, misleading or materially affects the acceptance or rating of this risk by **us**, by either direct misrepresentation, omission, concealment of facts or incorrect statements, this policy will be null and void from the effective date of the change.

This paragraph shall also apply to misstatement of use and omissions of fact. **We** do not provide coverage for any **insured** who has made fraudulent statements or engaged in fraudulent conduct in connection with any **accident** or **loss** for which coverage is sought under this policy.

TWO OR MORE AUTOS INSURED

With respect to any **accident** to which this and any other **auto** policy issued to **you** by **us** applies, the total limit of **our** liability under all the policies shall not exceed the highest applicable limit of liability under any one policy. This section does not apply to PART C • Uninsured Motorists Coverage.

CONFORMITY TO STATE STATUTES

The coverages provided in PART A and PART C of this policy pertaining to Liability and Uninsured Motorists coverages are intended to be in full conformity with the law applying to such coverages. If any provision of such coverages conflicts with such law, such provision is changed to comply with such law.

IN WITNESS WHEREOF, **we** have caused this policy to be executed and attested, but this policy shall not be valid unless countersigned on the Declarations Page by **our** duly authorized representative.

Mitch White

President

NOTIFICATION OF PRIVACY POLICY AND PRACTICES

At GMAC Insurance, We Take Your Privacy Seriously

As a valued customer, you are very important to us. To insure you and your family, we need to have certain information about you. But please be assured: We are committed to protecting your privacy. We keep your information secure and confidential, and safeguard it in may ways. This notice explains the kinds of information we keep, how we protect it, and who may see it.

Your Information Helps Us To Serve You

We want to be sure we have accurate information so that we charge you the correct premium. To do so, we must collect certain necessary information. This information comes from:

1. Your application and other insurance forms you complete (which show your name, address, social security number, and other data);
2. Your transactions with us, our affiliates, or others (such as your policy coverage, premiums, payment history, and the processing of any claims that you may have with us);
3. Outside sources (such as law enforcement and loss reporting agencies, which provide a record of accidents, and state motor vehicles departments), and
4. Data we receive from consumer reporting agencies.

Your Information Is Kept Confidential and Secure

We restrict access to your personal information only to employees who need it to serve you. We maintain state-of-the-art electronic security, as well as rigorous physical and procedural safeguards, to protect your personal information.

Your Information and Our Marketing Partners

We may disclose all the information described above to other companies or organizations, but only as permitted by law. For example, we may share the information we collect, as described above, with companies that perform marketing services on our behalf and with whom we have joint marketing agreements. We assure you, however, that **we will never sell your information to anyone.** We do not reveal information about our customers or former customers to anyone except as permitted by law.

This Endorsement Applies Only If Form Number MO410(10/00) Appears on the Declaration Page.

UNDERINSURED MOTORIST COVERAGE

Coverage is provided under this endorsement only when noted in the Declarations of this policy.

All conditions and terms of PART C - Uninsured Motorists Coverage and this policy apply to the coverage provided by this endorsement except as modified herein.

I. INSURING AGREEMENT

If you pay a premium for this coverage, we will pay damages, except punitive or exemplary damages, which an insured is legally entitled to recover from the owner or operator of an underinsured motor vehicle because of bodily injury:

1. Sustained by an insured; and
2. Caused by an auto accident.

The owner's or operator's liability for these damages must arise out of the ownership, maintenance or use of an underinsured motor vehicle. We will pay under this coverage only after the limits of liability under any applicable liability bonds or policies have been paid. Any judgment for damages arising out of a lawsuit is not binding on us unless we have consented in writing to the filing of the lawsuit.

II. DEFINITIONS

Underinsured motor vehicle means a land motor vehicle or trailer of any type which the sum of the limits of liability under all bodily injury liability bonds and insurance policies applicable at the time of the accident is less than the applicable Limit of Liability under this Part. However, underinsured motor vehicle does not mean a vehicle:

a. owned by any governmental unit or agency; or
b. owned or operated by a self-insurer under any applicable motor vehicle law; or
c. operated on rails or crawler treads; or
d. a vehicle owned by or furnished or available for regular use by you or any family member or
e. designed mainly for use off public roads while not on public roads; or
f. while located for use as a residence or premises.

III. LIMIT OF LIABILITY

A. The limit of liability shown in the Declarations for each person for Underinsured Motorist Coverage is our maximum limit of liability for all damages for bodily injury sustained by any one person in any one accident. This includes all derivative claims arising out of said bodily injury which includes, but is not limited to, damages for care, loss of service or death, loss of consortium, or loss of society or companionship. Subject to this limit for each person, the limit of liability shown in the Declarations for each accident for Underinsured Motorist Coverage is our maximum limit of liability for all damages for bodily injury resulting from any one accident auto. This includes all derivative claims arising out of said bodily injury which includes, but is not limited to, damages for car, loss of service or death, loss of consortium, or loss of society or companionship. This is the most we will pay under Underinsured Motorist Coverage, whichever is applicable, as a result of any one auto accident regardless of the number of:

   1. Insurds;
   2. Claims made;
   3. Autos or premiums shown in the Declarations;
   4. Vehicles involved in the accident; or
   5. Lawsuits brought.

B. However, the limit of liability shall be reduced by all sums paid because of the bodily injury by or on behalf of persons or organizations who may be legally responsible. This inlcudes all sums paid under Part A of this policy.

C. Any payment made under this coverage shall reduce the amount that person is entitled to receive under PART A - LIABILITY COVERAGE and PART B - MEDICAL PAYMENTS COVERAGE of this policy.

D. In no event shall an insured be entitled to receive duplicate payment for the same element of damages.

IV. If there is other applicable insurance, we will pay only our share of the damages. Our share is the property that our limit of liability bears to the total of all applicable limits. However, any insurance we provide with respect to an auto you do not own shall only be paid when the amount by which the limit of liability of this coverage exceeds the appropriate limit of liability of the other coverage.

NOTIFICATION OF PRIVACY POLICY AND PRACTICES

At GMAC Insurance, We Take Your Privacy Seriously

As a valued customer, you are very important to us. To insure you and your family, we need to have certain information about you. But please be assured: We are committed to protecting your privacy. We keep your information secure and confidential, and safeguard it in many ways. This notice explains the kinds of information we keep, how we protect it, and who may see it.

Your Information Helps Us To Serve You

We want to be sure we have accurate information so that we charge you the correct premium. To do so, we must collect certain necessary information. This information comes from:

1. Your application and other insurance forms you complete (which show your name, address, social security number, and other data);
2. Your transactions with us, our affiliates, or others (such as your policy coverage, premiums, payment history, and the processing of any claims that you may have with us);
3. Outside sources(such as law enforcement and loss reporting agencies, which provide a record of accidents, and state motor vehicles departments); and
4. Data we receive form consumer reporting agencies.

Your Information Is Kept Confidential and Secure

We restrict access to your personal information only to employees who need it to serve you. We maintain state-of-the-art electronic security, as well as rigorous physical and procedure safeguards, to protect your personal information.

Your Information and Our Marketing Partners

We may disclose all the information described above to other companies or organizations, but only as permitted by law. For example, we may share the information we collect, as described above, with companies that perform marketing services on our behalf and with whom we have joint marketing agreements. We assure you, however, that we will never sell your information to anyone. We do not reveal information about our customers or former customers to anyone except as permitted by law.

This Endorsement Applies Only If Form Number
GE 451 (04/01) Appears on the Declarations Page.

The following provisions apply to PART D - COVERAGE FOR DAMAGE TO YOUR AUTO when **your new covered auto** sustains a **total loss**.

REPLACEMENT OF NEW AUTOS.

I. INSURING AGREEMENT FOR REPLACEMENT OF NEW **AUTOS**.

We will pay for a new private passenger **auto**, van or pickup of the same model year, make, model, and equipment if **your new covered auto** sustains a **total loss**. **We** will pay for the **loss** to **your new covered auto** under this replacement provision if the **loss** is a **total loss** which:

A. Occurs:

1. Within 365 days of the date **you** purchased the vehicle; and
2. Before the odometer reaches 15,000 miles; and

B. Is caused by:

1. **Other than Collision** only if the Declarations indicate that **Other than Collision** Coverage is provided for that **auto**.
2. **Collision** only if the Declarations indicate that **Collision** Coverage is provided for that **auto**.

II. DEFINITIONS APPLICABLE TO THIS ENDORSEMENT.

"**Replacement Cost**" for **your new covered auto** means the cost at the time of **loss**, of a new **auto** of the same model year, make, model and equipment as the one covered under this provision without adjustment for depreciation.

"**Total loss**", as used in this provision, means **loss** from a single occurrence for which the cost of repair including parts, labor, and sales tax exceeds 80% of the **actual cash value** of **your new covered auto**. **Diminution of Value** will not be considered when determining whether **loss** or damage exceeds 80% of **actual cash value**.

"**Your new covered auto**" means a private passenger **auto**, van or pickup with 1,000 miles or less on the date **you** become the owner.

III. LIMIT OF LIABILITY

The LIMIT OF LIABILITY section of PART D - COVERAGE FOR DAMAGE TO YOUR AUTO is deleted and replaced by the following:

LIMIT OF LIABILITY

Our limit of liability for a **total loss** will be the **replacement cost** of the stolen or damaged property less any applicable deductible.

We reserve the right to replace **your new covered auto** or to pay the **total loss** in money.

IV. APPRAISAL

The term **actual cash value** in the APPRAISAL section of PART D is replaced by the term **replacement cost** for claims to which this endorsement applies.

V. ADDITIONAL PROVISIONS.

A. There is no coverage under this provision for **total loss** to:

1. Any **non-owned auto**, temporary substitute **auto**, rented **auto**, or **autos** leased for any term less than six months;
2. Any **auto** that does not meet the definition of **your new covered auto** when purchased.

B. If there is a lien on the title to **your new covered auto** when it is a **total loss**, any proceeds **we** pay to satisfy that lien will be deducted from the proceeds **we** pay toward the purchase of the replacement of **your new covered auto**.

GMAC Insurance ONLINE
Real Insurance. Real Time. Really.

CLAIMS KIT

The steps to take after an accident

IF YOU ARE IN AN ACCIDENT, FOLLOW THESE STEPS:

1. Determine if the parties involved are okay or if emergency care is needed.
2. Contact the police.
3. Complete the accident checklist.
4. If there is a witness, ask that he/she complete the witness card.
5. Call 1-800-GMAC-123 right away and report the claim.

ADVANTAGE TO REPORTING YOUR CLAIM EARLY:

* *Gets your life back on track.*
* *Helps you remember the details.*
* *May help reduce or eliminate personal expenses.*
* *The sooner we know, the sooner we can help!*

CALL US IMMEDIATELY TO REPORT A CLAIM, 24 HOURS A DAY, 7 DAYS A WEEK AT:

1-800-GMAC-123

Accident Checklist

Date of accident: _____ Time of Day: _____ AM/PM

Location of accident: _____

Weather conditions: _____

Were the police at the scene? Yes No

Police Dept: _____

Was anyone injured? Yes No

If yes, Name & Address: _____

_____

Name of other driver/owner: _____

Address: _____

Phone #: _____

2nd Phone #: _____

Make and Model of vehicle involved: _____

Other driver's insurance: _____

Other driver's license # and plate #: _____

Was other driver also the car owner? Yes No

If not, Name and Address of owner: _____

_____

Witness Card

Your Name: _____

Your Address:: _____

_____

Best Phone # to reach you: _____

Did you see the accident? Yes No

Did anyone appear injured? Yes No

If so, describe: _____

_____

Were you a passenger in either car? Yes No

How did the accident happen? _____

_____

_____

Were the authorities notified? Yes No

CLAIMS CARDS: Enter your policy number and keep in your glove box or your wallet.

(Cut along perforated line and fold down the middle)

ONLINE GMAC Insurance Real Insurance. Real Time. Really.

Policy Number

Policy Prefix-Policy Number

24-Hour Claims Reporting

1-800-GMAC-123

ONLINE GMAC Insurance Real Insurance. Real Time. Really.

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Call 1-800-GMAC-123 right away and report the claim.

GMAC Insurance ONLINE Real Insurance. Real Time. Really.

GMAC INSURANCE COMPANY ONLINE, INC
PO Box 66924
St. Louis, MO 63166-6924

ELECTRONIC FUNDS TRANSFER(EFT)/ CREDIT CARD AUTHORIZATION AGREEMENT

POLICY DETAILS

POLICY NUMBER: **AMO5078182**

EFFECTIVE DATE **10/2/2002** TO **4/2/2003**

POLICY ISSUED TO:
Jingxian Wu
601 S. Providence Rd, Apt. 705 L
Columbia MO, 65203

Please fill out the section below that coordinates with your desired payment method. You only need to fill out the section you wish to make your payments with. If you have any questions please feel free to call our Customer Service at 1-800-GMAC-123.

EFT AUTHORIZATION FORM

Name:	Policy Number:
Name of Financial Institution:	Financial Institution Number:
Account Number:	Authorization Signature Date:

CREDIT CARD AUTHORIZATION FORM

Name:	Policy Number:
Cardholder Billing Address:	Account Number:
Expiration Date:	Cardholder Signature: Date:

I authorize GMAC Insurance Online to initiate an electronic funds transfer or credit card payment from my account indicated above from the Financial Institution named above and authorized my Financial Institution to honor the transaction initiated by GMAC Insurance Online. This authority pertains to my insurance policy shown above. I understand this authority is to remain in effect until cancelled in writing by me, GMAC Insurance Online or the Financial Institution.

TERMS AND CONDITIONS

On or after the account draft date, your payment plan premium will begin to be deducted or charged to your designated account each month. Changes made to the payment option must be received by GMAC Insurance Online at least 5 business days prior to the automatic payment date in order to be processes for that billing cycle. If your automatic payment is to be taken on a weekend or holiday, such payment will be drafted on the next business day. The designated account must be in the same name of the insured.

If a change to your premium occurs during the policy term, a new draft schedule will be sent to you. If the change causes your premium to increase or decrease and there are more than 10 days until your next payment, the change in premium will be spread over all future payments including your next one. If there are fewer than 10 days until you next payment, the change in premium will be spread over all future payments, excluding the next one.

If you have a refund due you, we (at our option) may make the refund to your account noted above through an electronic transfer. If you have a claim under your policy with us, we (at our option) may pay your claim through an electronic transfer to your account noted above. This process only applies if you have chosen to make your payments by EFT.

If you have a balance owing on your policy after the expiration date, we will draft your account for the earned premium on the next designated draft date after the policy expires.

If any automatic payment is returned unpaid by your Financial Institution for any reason, we may charge and you agree to pay us an insufficient funds fee. We may change the amount of this fee from time to time. Any premium payment received will be first applied to this fee and any outstanding fees due, then to the premium owing.

GMAC INSURANCE COMPANY ONLINE, INC
PO Box 66924
St. Louis, MO 63166-6924

NOTICE OF UNDERWRITING DECISION AND INFORMATION PRACTICES

POLICY DETAILS

POLICY NUMBER: **AMO5078182**

EFFECTIVE DATE **10/2/2002** TO **4/2/2003**

POLICY ISSUED TO:
Jingxian Wu
601 S. Providence Rd, Apt. 705 L
Columbia MO, 65203

In connection with your insurance transaction with us, we use several consumer reports, such as a driver history and credit report from the following consumer reporting agencies:

Driver History Report
ChoicePoint
ChoicePoint Customer Center
2885 Breckinridge Blvd.
Suite 200
Duluth, GA 30096-4975
1-800-456-6004

Credit Report
Trans Union Corporation
Trans Union Disclosure Center
PO Box 390
760 West Spruill
Springfield, PA 19064
1-800-645-1938

In certain circumstances, the information contained in consumer reports and other personal or privileged information subsequently collected by us, may be legally disclosed to third parties without your consent, but it is not our practice to do so.

This information is used to evaluate and underwrite your policy of insurance. The consumer reporting agencies did not evaluate or underwrite your policy and are unable to provide you the specific reasons for the evaluation and underwriting of your policy.

At your request, we will: (1) confirm which of the above consumer reports were requested; and (2) provide information regarding our use of this information to process your policy. You may request this information by writing to us or calling us at 1-800-GMAC-123.

You have the right to receive a free copy of your consumer report from the consumer reporting agencies listed above. Your request must be made within 60 days of receiving this notice. You also have the right to dispute with a consumer reporting agency the accuracy or completeness of any information in a consumer report furnished by the agency.

The number of inaccuracies found in credit reports is very small. If you do find a discrepancy in any consumer report that should be corrected, the reporting agency will assist you. You can call the toll free numbers given for each agency above and they will assist you.